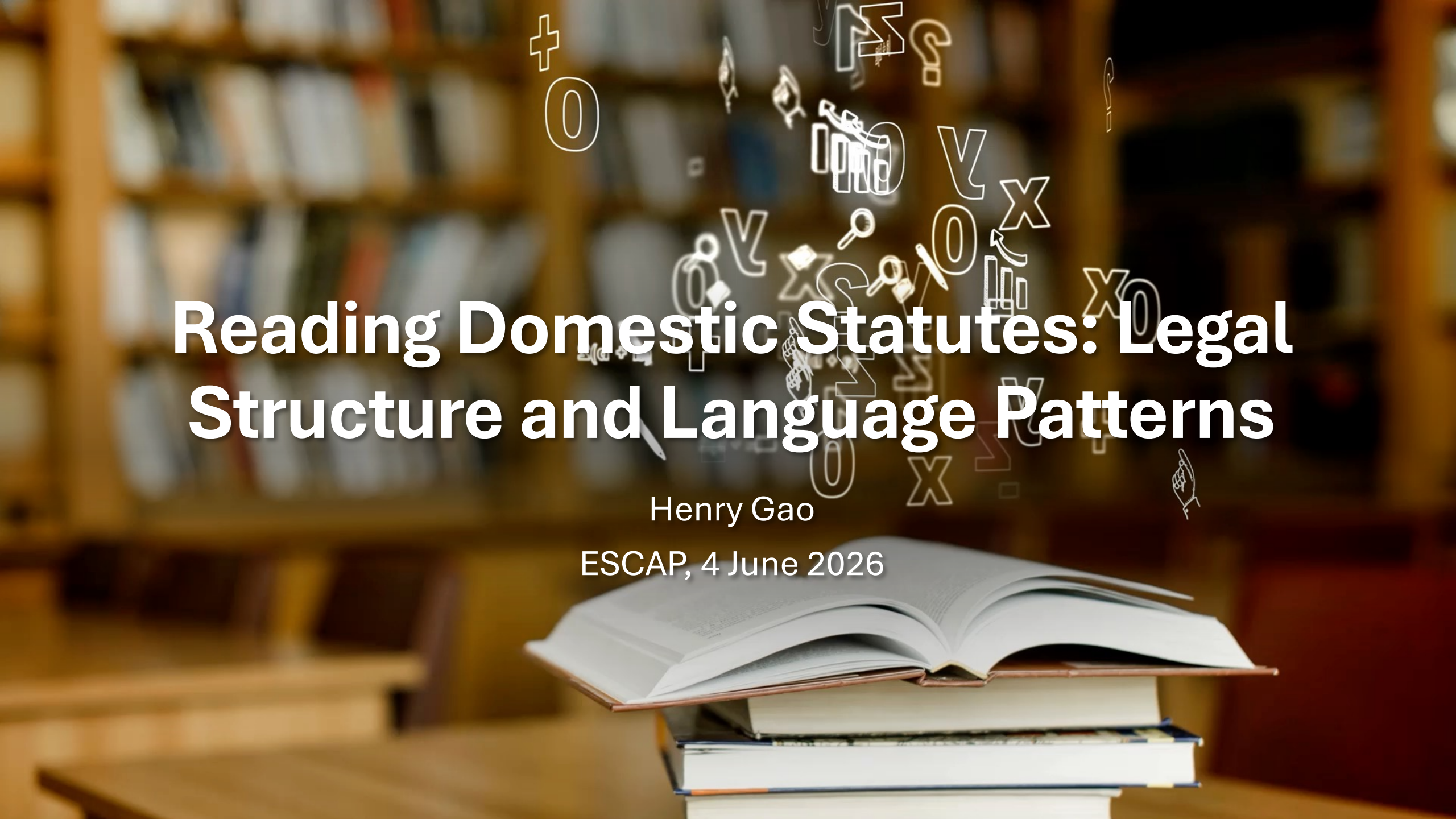


The background of the slide is a blurred image of a library with wooden bookshelves filled with books. Overlaid on this background are various white, hand-drawn mathematical and scientific symbols, including plus signs, minus signs, multiplication signs, division signs, percentages, and various letters and numbers, creating a sense of intellectual complexity.

Reading Domestic Statutes: Legal Structure and Language Patterns

Henry Gao

ESCAP, 4 June 2026



Introduction



Importance of digital
trade



Proliferation of digital
trade legislations



Regulatory conflicts and
the need for international
coordination



FTAs and WTO JSI on e-
commerce

Typical structure of statutes

Introduction/preamble:
why this law

Interpretation/definition:
what do the key terms
mean

Substantive obligations:
what you should do

Institutional provision:
who will implement the
law

Enforcement/penalty:
what are the
punishments if you don't
do what you should do

Judicial review: appealing
decisions made by the
administrative agency

Appendices: details not
to be missed

Example



THE STATUTES OF THE REPUBLIC OF SINGAPORE

**PERSONAL DATA PROTECTION
ACT 2012**

2020 REVISED EDITION

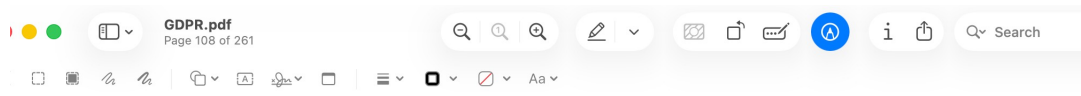
This revised edition incorporates all amendments up to and including 1 December 2021 and comes into operation on 31 December 2021.

Prepared and Published by

THE LAW REVISION COMMISSION
UNDER THE AUTHORITY OF
THE REVISED EDITION OF THE LAWS ACT 1983

Informal Consolidation – version in force from 5/12/2025

Introduction



(173) This Regulation should apply to all matters concerning the protection of fundamental rights and freedoms vis-à-vis the processing of personal data which are not subject to specific obligations with the same objective set out in Directive 2002/58/EC of the European Parliament and of the Council¹, including the obligations on the controller and the rights of natural persons. In order to clarify the relationship between this Regulation and Directive 2002/58/EC, that Directive should be amended accordingly. Once this Regulation is adopted, Directive 2002/58/EC should be reviewed in particular in order to ensure consistency with this Regulation,

HAVE ADOPTED THIS REGULATION:

2020 Ed. *Personal Data Protection Act 2012* 12

“user-provided data”, in relation to an organisation, means personal data provided by an individual to the organisation.

[22/2016; 40/2020]

(2) The Minister may, by notification in the *Gazette*, specify any statutory body established under a public Act for a public function to be a public agency for the purposes of this Act.

Purpose

3. The purpose of this Act is to govern the collection, use and disclosure of personal data by organisations in a manner that recognises both the right of individuals to protect their personal data and the need of organisations to collect, use or disclose personal data for purposes that a reasonable person would consider appropriate in the circumstances.

Application of Act

4.—(1) Parts 3, 4, 5, 6, 6A and 6B do not impose any obligation on —

- (a) any individual acting in a personal or domestic capacity;
- (b) any employee acting in the course of his or her employment with an organisation;
- (c) any public agency; or
- (d) any other organisations or personal data, or classes of organisations or personal data, prescribed for the purposes of this provision.

[40/2020]

Definition

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Personal Data Protection Act 2012

2020 Ed.

“processing”, in relation to personal data, means the carrying out of any operation or set of operations in relation to the personal data, and includes any of the following:

- (a) recording;
- (b) holding;
- (c) organisation, adaptation or alteration;
- (d) retrieval;
- (e) combination;
- (f) transmission;
- (g) erasure or destruction;

“public agency” includes —

- (a) the Government, including any ministry, department, agency, or organ of State;
- (b) any tribunal appointed under any written law; or
- (c) any statutory body specified under subsection (2);

“publicly available”, in relation to personal data about an individual, means personal data that is generally available to the public, and includes personal data which can be observed by reasonably expected means at a location or an event —

- (a) at which the individual appears; and
- (b) that is open to the public;

Substantive obligations

- Common operative verbs
 - Must (not)
 - May (not)
 - Shall (not)
 - Should (not)
 - Can (not)

PART 4

COLLECTION, USE AND DISCLOSURE OF PERSONAL DATA

Division 1 — Consent

Consent required

13. An organisation **must** not, on or after 2 July 2014, collect, use or disclose personal data about an individual unless —

- (a) the individual gives, or is deemed to have given, his or her consent under this Act to the collection, use or disclosure, as the case may be; or
- (b) the collection, use or disclosure (as the case may be) without the individual's consent is required or authorised under this Act or any other written law.

Provision of consent

14.—(1) An individual has not given consent under this Act for the collection, use or disclosure of personal data about the individual by an organisation for a purpose unless —

- (a) the individual has been provided with the information required under section 20; and
- (b) the individual provided his or her consent for that purpose in accordance with this Act.

More examples: modal constructions and common legislative patterns

[10/2020]
(2) Unless otherwise provided under this Act, an organisation may —

- (a) collect personal data about an individual that the organisation receives by way of a disclosure to the organisation —
 - (i) on or after 1 February 2021 in accordance with subsection (1)(c); or
 - (ii) before 1 February 2021 in accordance with section 17(3) as in force before that date,

for purposes consistent with the purpose of that disclosure, or for any purpose permitted by subsection (1)(a); or

Collection, use and disclosure without consent

17.—(1) An organisation may —

- (a) collect personal data about an individual, without the individual's consent or from a source other than the individual, in the circumstances or for the purposes, and subject to any condition, in the First Schedule or Part 1 of the Second Schedule;
- (b) use personal data about an individual without the individual's consent, in the circumstances or for the purposes, and subject to any condition, in the First Schedule or Part 2 of the Second Schedule; or
- (c) disclose personal data about an individual without the individual's consent, in the circumstances or for the purposes, and subject to any condition, in the First Schedule or Part 3 of the Second Schedule.

[40/2020]

Institutional provisions

PART 2

PERSONAL DATA PROTECTION COMMISSION AND ADMINISTRATION

Personal Data Protection Commission

5.—(1) The Info-communications Media Development Authority is designated as the Personal Data Protection Commission.

[22/2016]

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Personal Data Protection

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(2) The Personal Data Protection Commission is responsible for the administration of this Act.

[22/2016]

Functions of Commission

6. The functions of the Commission are —

- (a) to promote awareness of data protection in Singapore;
- (b) to provide consultancy, advisory, technical, managerial or other specialist services relating to data protection;
- (c) to advise the Government on all matters relating to data protection;
- (d) to represent the Government internationally on matters

Enforcement/penalty

Personal Data Protection

2020 Ed.

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Procedure for giving of directions and imposing of financial penalty

48K.—(1) Before giving any direction under section 48I or imposing a financial penalty under section 48J(1), the Commission must give written notice to the organisation or person concerned —

- (a) stating that the Commission intends to take action against the organisation or person under section 48I or 48J(1), as the case may be;
- (b) where the Commission intends to give any direction under section 48I, specifying the direction the Commission proposes to give;
- (c) specifying each instance of non-compliance that is the subject of the proposed action, or the reason or reasons for the proposed action; and
- (d) subject to subsections (2) and (3), specifying the time within which written representations may be made to the Commission with respect to the proposed action.

[40/2020]

(2) Where the Commission intends to impose a financial penalty under section 48J(1) on an organisation or a person, the time specified in the notice within which written representations may be made to the Commission must be at least 14 days after the date the notice is served on that organisation or person.

[40/2020]

(3) The Commission may, on written application by the organisation or person concerned (whether before, on or after the expiry of the time specified in the notice), extend the time for the organisation or person to make written representations to the Commission if the Commission is satisfied that the extension should be granted by reason of exceptional circumstances in the

Judicial review

PART 9D

APPEALS

Data Protection Appeal Panel and Data Protection Appeal Committees

48P.—(1) There is established a Data Protection Appeal Panel.

[40/2020]

(2) The Minister must appoint the members of the Appeal Panel.

[40/2020]

(3) The Chairperson of the Appeal Panel must be appointed by the Minister from among the members of the Appeal Panel.

[40/2020]

(4) For the purpose of hearing any appeal under section 48Q, the Chairperson of the Appeal Panel may nominate a Data Protection Appeal Committee comprising 3 or more members of the Appeal Panel.

[40/2020]

(5) The Seventh Schedule has effect with respect to the Appeal Panel, Appeal Committees and their members and the proceedings of Appeal Committees, as the case may be.

[40/2020]

Appeal from direction or decision of Commission

48Q.—(1) An organisation or a person (including an individual who is a complainant) aggrieved by —

- (a) any direction made by the Commission under section 48G(2), 48I(1) or (2) or 48L(4);
- (b) any direction or decision made by the Commission under section 48H(2); or

Appendices

EIGHTH SCHEDULE

Section 37(5)

EXCLUSION FROM MEANING OF “SPECIFIED MESSAGE”

1.—(1) For the purposes of Part 9, a specified message does not include any of the following:

- (a) any message sent by a public agency under, or to promote, any programme carried out by any public agency which is not for a commercial purpose;
- (b) any message sent by an individual acting in a personal or domestic capacity;

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FIRST SCHEDULE

Section 17(1) and Fifth and
Twelfth Schedules

COLLECTION, USE AND DISCLOSURE OF PERSONAL DATA WITHOUT CONSENT

PART 1

VITAL INTERESTS OF INDIVIDUALS

1.—(1) Subject to sub-paragraph (2), the collection, use or disclosure (as the case may be) of personal data about an individual is necessary for any purpose which is clearly in the individual’s interests, and —

- (a) consent for the collection, use or disclosure (as the case may be) cannot be obtained in a timely way; or
- (b) the individual would not reasonably be expected to withhold consent.

(2) Where the organisation collects, uses or discloses (as the case may be) personal data about the individual under sub-paragraph (1), the organisation must, as soon as is practicable, notify the individual of the collection, use or disclosure (as the case may be) and the purpose for the collection, use or disclosure, as the case may be.

Cross references and implementing regulations

[40/2020]
(6) The Minister may make regulations to provide for the application of any provision of this section, with such modifications as the Minister considers appropriate, to any unincorporated association or partnership formed or recognised under the law of a territory outside Singapore.

[40/2020]

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*Personal Data Protection
Act 2012*

2020 Ed.

reasonable steps to prevent or stop the commission of that offence,

shall be guilty of the same offence as is the unincorporated association or partnership (as the case may be), and shall be liable on conviction to be punished accordingly.

[40/2020]

(3) A person mentioned in subsection (2) may rely on a defence that would be available to the unincorporated association or partnership if it were charged with the offence with which the person is charged and, in doing so, the person bears the same burden of proof that the unincorporated association or partnership would bear.

[40/2020]

(4) To avoid doubt, this section does not affect the application of —

(a) Chapters 5 and 5A of the Penal Code 1871; or

(b) the Evidence Act 1893 or any other law or practice regarding the admissibility of evidence.

[40/2020]

Where to start

[ABOUT](#)[COMMISSION](#)[2030 AGENDA](#)[OUR WORK](#)[KNOWLEDGE PRODUCTS](#)[MORE](#)

ESCAP Initiative on Regional Digital Trade Integration

[DATABASE](#)[ECONOMY PROFILES](#)[PUBLICATIONS](#)[EVENTS AND ANNOUNCEMENTS](#)[RDTII 2.1 FRAMEWORK](#)[GET INVOLVED](#)

Regional Digital Trade Integration Index dashboard

This dashboard provides a visual illustration of data from the Regional Digital Trade Integration Index (RDTII) and the Digital Trade Regulatory Similarity (DTRS). It offers an overview of digital trade regulatory landscapes, allowing users to explore data within and across the Asia-Pacific, Africa, and Latin America and the Caribbean regions.

For the best experience, please use full-screen mode. Click on the full-screen icon  at the bottom right of the dashboard.

RDTII



The RDTII 2.1 framework in brief

The RDTII 2.1 framework provides a structured basis for comparing digital trade-related regulations across economies. It is designed to support policy dialogue by identifying areas where greater clarity, coordination, or cooperation may enhance regional digital trade integration. The framework produces a **composite index**, calculated as a simple average across **12 policy Pillars**. Within each Pillar, indicators are assigned differential weights to represent the relative impact of the concerned measures. These weights were determined based on academic experts' opinions. The 12 Pillars cover the following policy domains relevant to digital trade:

Pillar 1 Tariffs and trade defence measures applied to ICT goods in regional trade.

Pillar 2 Policies governing participation in **public procurement** of ICT goods and digital services.

Pillar 3 Policies regulating **foreign direct investment** in sectors related to digital trade.

Pillar 4 Intellectual property rights (IPRs) frameworks, including provisions for protection and innovation.

Pillar 5 Policies related to telecommunications infrastructure and market competition.

Pillar 6 Cross-border data policies addressing data flows, privacy, and related governance measures.

Pillar 7 Domestic data policies on privacy, protection, retention, and cybersecurity.

Pillar 8 Legal frameworks for **internet intermediary liability**.

Pillar 9 Regulations on **access to online content** and measures related to illegal content.

Pillar 10 Non-technical non-tariff measures (NTMs) affecting trade in ICT goods and digital services.

Pillar 11 Technical standards and conformity assessment procedures relevant to digital trade.

Pillar 12 Regulations related to online sales and transactions, including electronic signatures, payments, delivery, and consumer protection.

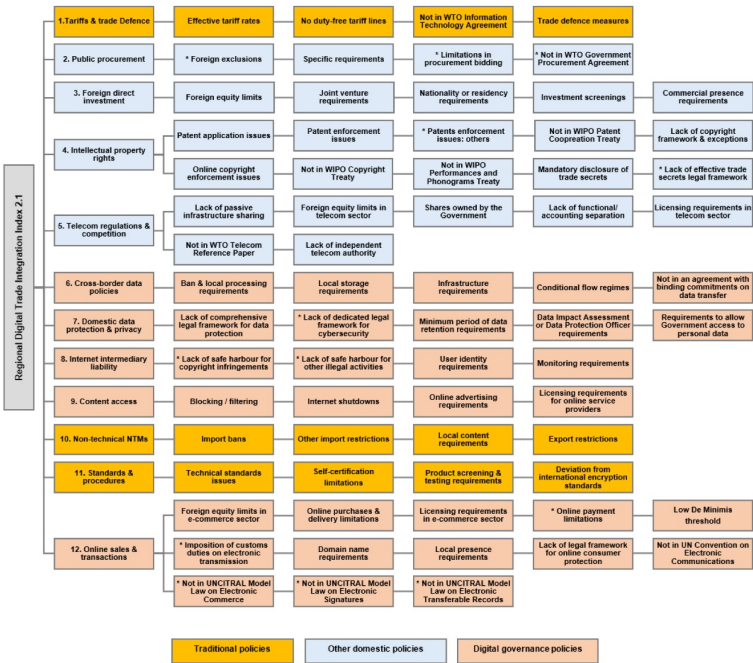
Each indicator is scored from **0 to 1**, reflecting the **presence and characteristics of policy measures**—not their quality, effectiveness, or desirability. A score closer to 1 reflects a more detailed or broader regulatory framework in a given area, which may be associated with more complex compliance requirements. Such characteristics may include:

- Multiple administrative procedures relevant to market access or operation;
- Distinctions in treatment based on provider type (e.g., domestic or foreign; online or offline);
- Limited adoption of international frameworks that facilitate interoperability or cross-border cooperation.

When possible, the framework also considers **intra-regional dimensions**, including measures, standards, and agreements applied to digital trade within the region. It is intended to facilitate structured comparison, peer learning, and identification of potential entry points for regional cooperation to support a more interoperable and inclusive digital trade environment.



Regional Digital Trade Integration Index (RDTII 2.1) – Pillars and indicators



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Questions?